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**GNIOT Institute of Management Studies – PGDM (Batch 2021-23)**

**(TRIMESTER – IV) END TERM EXAMINATION, SEPTEMBER - 2022**

**LEGAL ASPECTS IN SUPPLY CHAIN MANAGEMENT**

[Time: 2 Hours 30 Minutes]

[Maximum Marks: 100]

**INSTRUCTIONS:**

- (i) There are **THREE** sections in this question paper.
- (ii) Attempt questions from each section as per the directions.
- (iii) Make suitable assumptions wherever necessary.

**SECTION-A**

**(Short Answer Type Questions, do not exceed 100 words)**

**Q.1. Attempt all parts of the following:**

**(10×3=30)**

- (a) Define “Hazardous Substance”.
- (b) Define “Precedent”.
- (c) When does a seller become an unpaid seller?
- (d) Define currency as per the Foreign Exchange Management Act, 1999.
- (e) What are the essential elements of a contract of sale of goods?
- (f) Define “Environmental Pollution”.
- (g) Define “Goods”.
- (h) Define ‘Stoppage in transit’.
- (i) Define Doctrine of Caveat Emptor.
- (j) Define Predatory Pricing.

**SECTION-B**

**(Long Answer Type Questions)**

**Attempt all questions of the following:**

**(4×10=40)**

**Q.2. (a)** What are the powers of the Central Government under the Environment Protection Act?

**OR**

(b) Who is an authorised person under section 2(c) of the FEMA 1999 and what is the broad classification of such authorised persons?

**Q.3. (a)** Define Horizontal Agreements and what are the types of horizontal agreements?

**OR**

(b) Give all the essential elements required for a contract to be a valid contract.

**Q.4. (a)** Differentiate between condition and warranties with the exceptions of situations where a condition may be treated as a warranty.

**OR**

(b) Define Vertical Agreements and what are the types of vertical agreements.

**Q.5.** (a). What is breach of contract? And what are the remedies available to the injured party or parties in case of a breach of contract?

**OR**

(b) What are the functions of CCI?

***SECTION-C***

**Q.6. Attempt all parts of the following:**

**(2×15=30)**

Mr. Ram Singh received an offer letter from a company M/s ABC Pvt. Ltd. for the post of Purchase Manager, the offer letter contained basic information such as salary, probation tenure, etc. The company deals in the perfume industry and has specific vendors for essential ingredients. The company in their offer letter has asked Mr. Ram Singh to comply by the secrecy of the details of these vendors. He has been asked to sign a NDA with the company that in case of leaving the company he shall not disclose the details of these vendors to rival companies.

**6(a)** Draft the employment agreement with all the important details that Mr. Ram Singh can review before accepting the job.

**6(b)** Draft a NDA between the parties to keep the details of the vendors a secret.